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CASE #	CASE NAME	HEARING NAME
CVPS2502698	MOYA VS VOLKSWAGEN GROUP OF AMERICA, INC., A NEW JERSEY CORPORATION	MOTION FOR ATTORNEYS FEES BY FRANCISCO MOYA, VANESSA MOYA

Tentative Ruling: Granted.

No opposition filed.

Attorney fees and costs to be paid by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On April 9, 2025, Plaintiff filed a Song Beverly suit against Defendant alleging two causes of action for express and implied breach of warranty. A notice of settlement was filed on March 24, 2026.

Plaintiff brings this motion for attorneys' fees, costs, and expenses (\$21,867.65) as the prevailing party in this action. Plaintiff argues the amounts requested including hourly rates were reasonable and necessary along with a multiplier.

Defendant did not file an opposition.

Song Beverly Attorney Fees

Under Civil Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." For purposes of settlement, Defendant, GM, agreed that Plaintiff is the prevailing party. (Dec.Keshishian ¶ 20.) Notice of Settlement was filed on 1/31/25. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information such as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is

reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; *see also PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure). The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Here, Plaintiff asserts the work of 7 different attorneys and 1 clerk over the course of litigation amounting to 32.7 hours with a top hourly rate of \$550.00.

Based on the Court's own experience, the hourly rate of lead counsel at \$550 an hour is reasonable for Riverside County. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Again, Defendant not challenged any of the hourly rates so, no modification is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in amount of \$12,821.00 plus a multiplier of 1.2 for early resolution of the matter for a total fee amount of \$15,835.20. GRANTED

Costs

Plaintiff filed a Memorandum of Costs in the amount \$2636.15 which was not challenged. GRANTED

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CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	MOTION TO STRIKE COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Sustained.

Sustained without leave to amend. Moving Defendants to file their answer to 1st cause of action within 20 days of this order becoming final.